

Federal Constitution

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Part XIII

See Art. 160(2), definitions of “Federal law” and “State law”.

Art. 162

Clause (3)

The words “and to any officer holding office” substituted for the words “and of any officer holding office” by Act A31, section 9, in force from 24-03-1971.

Clause (4)

This Clause was repealed by Act 25/1963, section 8, in force from 29-08-1963, the repeal to be without prejudice to the operation of any order made under the Clause and read as follows:

“(4) The Yang di-Pertuan Agong may, within a period of two years beginning with Merdeka Day, by order make such modifications in any existing law, other than the Constitution of any State, as appear to him necessary or expedient for the purpose of bringing the provisions of that law into accord with the provisions of this Constitution; but before making any such order in relation to a law made by the Legislature of a State he shall consult the Government of that State.”.

(7) In this Article “modification” includes amendment, adaptation and repeal.

163. *(Repealed).*

164. *(Repealed).*

165. *(Repealed).*

Succession to property

166. (1) *(Repealed).*

(2) *(Repealed).*

(3) Any land vested in the State of Malacca or the State of Penang which immediately before Merdeka Day was occupied or used by the Federation Government or Her Majesty’s Government or by any public authority for purposes which in accordance with the provisions of this Constitution become federal purposes shall on and after that day be occupied, used, controlled and managed by the Federal Government or, as the case may be, the said public authority, so long as it is required for federal purposes, and—

(a) shall not be disposed of or used for any purposes other than federal purposes without the consent of the Federal Government; and

(b) shall not be used for federal purposes different from the purposes for which it was used immediately before Merdeka Day without the consent of the Government of the State.

(4) *(Repealed).*

(5) *(Repealed).*

(6) *(Repealed).*

(7) *(Repealed).*

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Art. 163, 164 & 165

1. These Articles were repealed by Act 25/1963, section 8, in force from 29-08-1963 and read as follows:

“163. (1) The Emergency Regulations Ordinance 1948, and all subsidiary legislation made thereunder shall, if not sooner ended by a Proclamation under Clause (2), cease to have effect on the expiration of one year beginning with Merdeka Day or, if continued under this Article, on the expiration of a period of one year from the date on which it would have ceased to have effect but for the continuation or last continuation.

(2) The Yang di-Pertuan Agong may at any time repeal the said Ordinance and any subsidiary legislation made thereunder by a Proclamation declaring that the need for the Ordinance has ended.

(3) The said Ordinance and subsidiary legislation may be continued from time to time by a resolution of each House of Parliament.

(4) While the said Ordinance continues in force any subsidiary legislation which could have been made thereunder immediately before Merdeka Day may be validly made thereunder notwithstanding that it is inconsistent with any provision of this Constitution, and Parliament may, notwithstanding anything in this Constitution, by law amend or repeal any provision thereof.

164. (1) The Legislative Council established under the Federation of Malaya Agreement 1948, shall remain in being on and after Merdeka Day and shall not be dissolved before the first day of January, nineteen hundred and fifty-nine.

(2) If the Election Commission advises the Yang di-Pertuan Agong that it is not reasonably practicable to hold elections to Parliament in accordance with this Constitution before the first day of July, nineteen hundred and fifty-nine, the Yang di-Pertuan Agong may at any time after the first day of January, nineteen hundred and fifty-nine, by Proclamation continue the Legislative Council until such date, not being later than the end of that year, as may be specified in the Proclamation, and the Legislative Council shall continue accordingly and shall stand dissolved on that date.

(3) Until the dissolution of the Legislative Council Chapters 4 and 5 of Part IV shall not apply, and the powers of Parliament under this Constitution shall be exercisable by the Yang di-Pertuan Agong with the advice and consent of the Legislative Council; and accordingly, in relation to the period ending with the dissolution of the Legislative Council, references in this Constitution, other than references in Article 159, to Parliament, either or both Houses of Parliament and an Act of Parliament shall be construed respectively as references to the Yang di-Pertuan Agong with the advice and consent of the Legislative Council, the Legislative Council and an Ordinance enacted by the Yang di-Pertuan Agong with the advice and consent of that Council.

(4) Until the dissolution of the Legislative Council the provisions of the Federation of Malaya Agreement 1948, set out in the first column of the Twelfth Schedule shall continue in force, subject to the modifications set out in the second column of that Schedule and to the following further modifications, that is to say—

- (a) for references to a Malay State or a Settlement there shall be substituted references to a State;
- (b) for references to the High Commissioner there shall be substituted references to the Yang di-Pertuan Agong; and
- (c) for references to the Federal Executive Council there shall be substituted references to the Cabinet,

and Article 61 shall apply with the necessary modifications.

165. (1) Subject to Clause (4), Part VII shall not come into operation until the first day of January nineteen hundred and fifty-nine, or such earlier date as may be provided by or under federal law.

(2) Until the coming into operation of Part VII, the provisions of Part XI of and the Third, Fourth and Fifth Schedules to the Federation of Malaya Agreement 1948, shall continue in force, but with the following modifications, that is to say—

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Art. 163, 164 & 165—(cont.)

- (a) references to a Malay State or a Settlement shall be construed as references to a State;
- (b) references to the High Commissioner and to the High Commissioner in Council shall be construed as references to the Yang di-Pertuan Agong;
- (c) references to the Government of a Settlement shall be deleted; and
- (d) references to a Settlement Council shall be construed as references to a Council of State.

(3) Until the coming into operation of Part VII, any moneys which under this Constitution (including Part VII) are charged on the Consolidated Fund shall be charged on the revenues of the Federation, and payment thereof shall be made by virtue of this Clause without further authority of federal law.

(4) Notwithstanding anything in Clause (1), the following provisions of Part VII shall come into operation on Merdeka Day, that is to say, Articles 96, 105 to 107 and 111.”

2. There is a reference to repealed Art. 163 in Art. 162(1), hence reference to Article 163 is retained in the Federal Constitution.

Art. 166

Clauses (1) & (2)

These Clauses were repealed by Act 25/1963, section 8, in force from 29-08-1963 and read as follows:

“(1) Subject to the provisions of this Article, all property and assets which immediately before Merdeka Day were vested in Her Majesty for the purposes of the Federation or of the colony or Settlement of Malacca or the colony or Settlement of Penang, shall on Merdeka Day vest in the Federation or the State of Malacca or the State of Penang, as the case may be.

(2) Any land in the State of Malacca or the State of Penang which immediately before Merdeka Day was vested in Her Majesty shall on that day vest in the State of Malacca or the State of Penang, as the case may be.”.

Clauses (4), (5), (6) & (7)

These Clauses were repealed by Act 25/1963, section 8, in force from 29-08-1963 and read as follows:

“(4) Any State land which, immediately before Merdeka Day, was occupied or used, without being reserved, by the Federation Government for purposes which become federal purposes on that day, shall on that day be reserved for those federal purposes.

(5) All property and assets which immediately before Merdeka Day were vested in the Federation Government or some other person on its behalf for purposes which on that day continue to be federal purposes, shall on that day vest in the Federation.

(6) Property and assets which immediately before Merdeka Day were vested in the Federation Government or some person on its behalf for purposes which on that day become purposes of any State shall on that day vest in that State.

(7) Property and assets other than land which immediately before Merdeka Day were used by a State for purposes which on that day become federal purposes shall on that day vest in the Federation.”.

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(8) Any property which was, immediately before Merdeka Day, liable to escheat to Her Majesty in respect of the Government of Malacca or the Government of Penang shall on that day be liable to escheat to the State of Malacca or the State of Penang, as the case may be.

Rights, liabilities and obligations

167. (1) (*Repealed*).

(2) (*Repealed*).

(3) (*Repealed*).

(4) (*Repealed*).

(5) (*Repealed*).

(6) The Attorney General shall, on the application of any party interested in any legal proceedings, other than proceedings between the Federation and a State, certify whether any right, liability or obligation is by virtue of this Article a right, liability or obligation of the Federation or of a State named in the certificate, and any such certificate shall for the purposes of those proceedings be final and binding on all courts, but shall not operate to prejudice the rights and obligations of the Federation and any State as between themselves.

(7) The Federation shall make the like annual payments as fell to be made before Merdeka Day under Article II of the Treaty made on the sixth day of May, eighteen hundred and sixty-nine, between Her Majesty of the one part and the King of Siam of the other part relative to the State of Kedah.

168. (*Repealed*).

International agreements, etc., made before Merdeka Day

169. For the purposes of Clause (1) of Article 76—

- (a) any treaty, agreement or convention entered into before Merdeka Day between Her Majesty or her predecessors or the Government of the United Kingdom on behalf of

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Art.167

Clauses (1), (2), (3), (4) & (5)

These Clauses were repealed by Act 25/1963, section 8, in force from 29-08-1963 and read as follows:

“167. (1) Subject to the provisions of this Article, all rights, liabilities and obligations of—

- (a) Her Majesty in respect of the government of the Federation; and
- (b) the Government of the Federation or any public officer on behalf of the Government of the Federation,

shall on and after Merdeka Day be the rights, liabilities and obligations of the Federation.

(2) Subject to the provisions of this Article, all rights, liabilities and obligations of—

- (a) Her Majesty in respect of the government of Malacca or the government of Penang,
- (b) His Highness the Ruler in respect of the government of any State, and
- (c) the Government of any State,

shall on and after Merdeka Day be the rights, liabilities and obligations of the respective States.

(3) All rights, liabilities and obligations relating to any matter which was immediately before Merdeka Day the responsibility of the Federation Government but which on that date becomes the responsibility of the Government of a State, shall on that day devolve upon that State.

(4) All rights, liabilities and obligations relating to any matter which was immediately before Merdeka Day the responsibility of the Government of a State but which on that day becomes the responsibility of the Federal Government, shall on that day devolve upon the Federation.

(5) In this Article, rights, liabilities and obligations include rights, liabilities and obligations arising from contract or otherwise, other than rights to which Article 166 applies.”.

Art. 168

This Article was repealed by Act 25/1963, section 8, in force from 29-08-1963 and read as follows:

“168. (1) Subject to the provisions of this Article, any legal proceedings pending in any court immediately before Merdeka Day in which Her Majesty or any servant of Her Majesty is a party in respect of the colony or Settlement of Malacca or the colony or Settlement of Penang shall continue on and after Merdeka Day with the State of Malacca or the State of Penang, as the case may be, substituted as a party.

(2) Subject to the provisions of this Article, any legal proceedings pending in any court immediately before Merdeka Day in which the Federation Government or a State Government or any officer of either Government is a party shall continue on and after Merdeka Day with the Federation or, as the case may be, the State substituted as a party.

(3) Any legal proceedings pending in any court immediately before Merdeka Day in which the Federation Government or any officer thereof is a party shall, if the subject matter falls within the executive authority of a State, be continued on and after that day with that State substituted as a party.

(4) Any legal proceedings pending in any court immediately before Merdeka Day in which a State or any officer thereof is a party shall, if the subject matter falls within the executive authority of the Federation, be continued on and after that day with the Federation substituted as a party.

(5) The Attorney General shall, on the application of any party to any proceedings referred to in this Article, certify whether the Federation or a State is in accordance with this Article to be substituted as a party in those proceedings, and any such certificate shall, for the purpose of those proceedings, be final and binding on all courts, but shall not operate to prejudice the rights and obligations of the Federation and any State as between themselves.”.

the Federation or any part thereof and another country shall be deemed to be a treaty, agreement or convention between the Federation and that other country;

- (b) any decision taken by an international organization and accepted before Merdeka Day by the Government of the United Kingdom on behalf of the Federation or any part thereof shall be deemed to be a decision of an international organization of which the Federation is a member;
- (c) in relation to the States of Sabah and Sarawak paragraphs (a) and (b) shall apply with the substitution of references to Malaysia Day for the references to Merdeka Day and of references to the territories comprised in those States or any of them for the references to the Federation or any part thereof.

170. *(Repealed).*

171. *(Repealed).*

172. *(Repealed).*

173. *(Repealed).*

174. *(Repealed).*

Director of Audit to be first Auditor General

175. The person holding office as Director of Audit immediately before Merdeka Day shall, as from that day, hold office as Auditor General on terms and conditions not less favourable than those applicable to him immediately before Merdeka Day.

Transfer of officers

176. (1) Subject to the provisions of this Constitution and any existing law, all persons serving in connection with the affairs of the Federation immediately before Merdeka Day shall continue to have the same powers and to exercise the same functions on Merdeka Day on the same terms and conditions as were applicable to them immediately before that day.

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Art. 169(c)

1. Added by Act 26/1963, section 41, in force from 16-09-1963.
2. The words “and to Singapore” which appeared after the words “Borneo States” were deleted by Act 59/1966, section 2, in force from 09-08-1965.
3. The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.

Art. 170

This Article was repealed by Act 25/1963, section 8, in force from 29-08-1963 and read as follows:

“170. (1) Subject to the provisions of this Article, any person who, immediately before Merdeka Day, was qualified to make application for registration as a citizen of the Federation under Clause 126 of the Federation of Malaya Agreement, 1948, shall be entitled, upon making application to the registration authority within the period of one year beginning with that day, to be registered as a citizen.

(2) A person who has absented himself from the Federation for a continuous period of five years within the ten years immediately preceding his application under this Article shall not be entitled to be registered thereunder unless it is certified by the Federal Government that he has maintained substantial connection with the Federation during that period.

(3) This Article shall be construed as one with Part III; and Articles 18 and 26 shall apply in relation to registration under this Article, and to persons registered as citizens thereunder, as they apply in relation to registration under Article 16 and to persons registered under that Article.”.

Art. 171

1. This Article was repealed by Act 25/1963, section 8, in force from 29-08-1963, the repeal to be without prejudice to the operation of any law referring to the number of constituencies specified in Clause (2). It read as follows:

“171. (1) Article 116 shall not apply to the first election to the House of Representatives, but for that election the Federation shall be divided into constituencies by dividing into two constituencies each of the constituencies delimited for the purpose of elections to the Legislative Council under the Federation of Malaya Agreement, 1948.

(2) The number of constituencies for the purpose of the first elections to be held after Merdeka Day to the Legislative Assemblies of the several States shall be as set out in the following Table, and those constituencies shall be delimited by dividing the constituencies delimited for the purpose of the first election to the House of Representatives.

Table

Johore	...	...	32	Penang	...	...	24
Kedah	...	...	24	Perak	...	...	40
Kelantan	...	...	30	Perlis	...	...	12
Malacca	...	...	20	Selangor	...	...	28
Negeri Sembilan	...	...	24	Terengganu	...	...	24.”.
Pahang	...	...	24				

2. See Eighth Schedule, subsection 21(1).

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Art. 172

This Article was repealed by Act 25/1963, section 8, in force from 29-08-1963, the repeal to be without prejudice to the continuance of any court referred to in the Article. It read as follows:

“172. The Supreme Court in existence immediately before Merdeka Day shall be the Supreme Court for the purposes of this Constitution; and, without prejudice to the generality of Article 162, any other court then exercising jurisdiction and functions shall, until federal law otherwise provides, continue to exercise them.”.

Art. 173

This Article was repealed by Act 25/1963, section 8, in force from 29-08-1963. It read as follows:

“173. Any appeal or application for leave to appeal from the Supreme Court to Her Majesty in Council which is pending immediately before Merdeka Day shall on and after Merdeka Day be treated as an appeal or application for leave to appeal under Article 131.”.

Art. 174

This Article was omitted by Act 26/1963, section 70, in force from 16-09-1963 and read as follows:

“174. (1) The Chief Justice and other judges of the Supreme Court holding office immediately before Merdeka Day shall, notwithstanding anything in Article 123, be the Chief Justice and the other judges of the Supreme Court on that day and shall hold office on terms and conditions not less favourable than those applicable to them immediately before that day.

(2) The person holding the office of Attorney General immediately before Merdeka Day shall continue to hold that office on terms and conditions not less favourable than those applicable to him immediately before Merdeka Day and shall, notwithstanding anything in Article 123, be qualified for appointment as a judge of the Supreme Court.

(3) A person who immediately before Merdeka Day was a member of the judicial and legal service of the Federation and would be qualified for appointment as a judge of the Supreme Court if he were a citizen shall be so qualified notwithstanding that he is not a citizen.

(4) A person may, within a period of ten years beginning with Merdeka Day, be appointed to be a judge of the Supreme Court notwithstanding that he is not qualified for appointment under Article 123 if he is and has been for not less than five years qualified to practise as an advocate in a court in any Commonwealth country having unlimited jurisdiction in civil or criminal matters; and a person appointed by virtue of this Clause may be appointed for a fixed period (whether expiring before or after he attains the age of sixty-five).

(5) Without prejudice to the generality of Article 162, nothing in Part IX shall be taken to affect the provisions of the existing law relating to the sitting in the Supreme Court of judges from countries outside the Federation.”.